

1.	Pitman v. General Motors LLC 22-1277422	The Motion to Compel Further Responses, etc., filed on 5/22/23 by Plaintiff Brian Pitman ("Plaintiff") as to Plaintiff's Form Interrogatories, Set One (the "FROGs"), is GRANTED for FROG Nos. 1.1, 15.1, and 17.1 as directed to RFA 14, as the responses at issue were plainly incomplete. The Motion is DENIED as to FROG 2.8, as Plaintiff has not shown why the response is insufficient given the context here. Defendant General Motors, LLC ("GM") is to provide verified supplemental responses for FROG Nos. 1.1, 15.1, and 17.1 within 20 days after service of notice of this ruling. It also appears that no verification was provided for the responses at issue [none is presented with the Motion, and the Opposition argues about the content thereof, but also without attaching a copy]; if so, GM is also to provide that verification within 20 days after service of notice of this ruling. <i>Counsel for Plaintiff is to give notice.</i>
2.	Alimadadian v. M3Live Bar & Grill, Inc. 15-822570	Before the Court at present is a Motion to Tax Costs, filed by Judgment Debtors Musa Madain and The Grand Theater, Inc. (here as moving parties, "MPs") filed on 5/19/23 and amended on 8/24/23, which seeks to tax costs claimed in the Memorandum of Costs After Judgment ("MOCAJ") as filed on 5/9/23. The Motion is GRANTED IN PART. The Motion argues that the sum sought for fees in the MOCAJ includes sums that were already claimed in an earlier MOCAJ. The MOCAJ currently at issue does seem to do so, as it purports to claim attorney's fees in the amount of \$125,490 for the period between March 2022 and April 2023 – which would overlap with the prior fee claim. (ROA 433; ROA 255.) However, the Opposition clarifies that what is actually sought in the current MOCAJ is \$52,830 in new fees for the period between December 2022 and April 2023, so there is no overlap. (Hashemi Decl. at ROA 565, ¶ 7.) To the extent that the MOCAJ at issue appears to claim any new attorney's fees beyond that sum, the Motion is GRANTED. However, the balance of the arguments made in the Motion have not been shown to have merit and are therefore DENIED. The sum at issue has been timely claimed here in accordance with <i>C.C.P. § 685.070(a)(6)</i> and <i>C.C.P. § 685.040</i>. With regard to the sum claimed for new fees, the number of hours spent on post-collection efforts is adequately supported, and the time appears to have been reasonably

		incurred for the services rendered during that period. Although the hourly rate claimed here is substantial for a collection matter, it does not seem unreasonable in the context of this case. The Court thus finds that the \$52,830 sum claimed for fees incurred between December 2022 and April 2023 is reasonable in context here. The total post-judgment fees which Plaintiff may recover, up through the end of April 2023, will thus be \$125,490 (for the \$72,660 sum already included per the prior MOCAJ, and an additional \$52,830 here). <i>Counsel for MPs is to give notice of this ruling.</i>
3.	Ricks v. Wine Cellar Designers Group, LLC 22-1274692	The unopposed demurrer by defendant Wine Cellar Designers Group, LLC to the complaint filed by plaintiff Tyler Ricks is OVERRULED. The Court notes that although there is no POS attached to the Demurrer, it was apparently served on the plaintiff as his counsel discusses it in his 7/3/23 Status Report to the Court. The Court therefore rules on the merits of the Demurrer as follows. The role of a Demurrer is "to test the legal sufficiency of a complaint." (<i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994, citations omitted.) In ruling on the demurrer, the court "treats the Demurrer as admitting all material facts properly pleaded." "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (<i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38.) Here, defendant argues that it was not plaintiff's employer and that the causes of action therefore fail. These facts contradict the allegations in the complaint which are that plaintiff was employed by Wine Cellar Designers Group, LLC. Accordingly, the Demurrer is OVERRULED. Defendant to answer within 20 days. <i>Counsel for moving party is ordered to give notice of this ruling.</i>
4.	Western Overseas Corporation v. Seaways Shipping and Logistics Limited 23-1314361	The unopposed Motion to be Relieved as Counsel of Record, filed by Jessie Gessin and Gessin Ltd. as to representation of defendant Seaways Shipping and Logistics Limited is GRANTED. The Court will add the 10/27/23 CMC to Para. 8 of the proposed Order and the Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client. <i>Moving counsel is ordered to give notice of this ruling</i>